

IN THE CIRCUIT COURT OF THE FOURTH JUDICIAL CIRCUIT
IN AND FOR THE COUNTY OF DUVAL, STATE OF FLORIDA
CIRCUIT CIVIL DIVISION

SCOTT LANCASTER,

Plaintiff,

Case No.:

Division:

v.

STATE FARM MUTUAL AUTOMOBILE
INSURANCE COMPANY and STATE FARM
FIRE & CASUALTY COMPANY

Defendants.

COMPLAINT

COMES NOW, the Plaintiff, SCOTT LANCASTER, by and through his undersigned counsel, and hereby sues the Defendants, STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY hereinafter referred to as ("STATE FARM MUTUAL) and STATE FARM FIRE & CASUALTY COMPANY, hereinafter referred to as ("STATE FARM FIRE") and alleges as follows:

COUNT I

Claim for UM Benefits

1. This is an action for damages which exceed Fifteen Thousand Dollars (\$15,000.00);
2. The Plaintiff, SCOTT LANCASTER, at all times hereinafter was a resident of Forcyth County, Georgia and most recently a resident of Manatee County, Florida;
3. STATE FARM MUTUAL is a foreign corporation authorized to do business and does business in Duval County, Florida;
4. On or about October 5, 2016, Plaintiff, SCOTT LANCASTER, was the operator of a motor vehicle at the intersection of San Jose Boulevard and S.R. 13 in Duval County, Florida. At

the time and place, an underinsured vehicle operated by Jorge Trejo Ovando Bersain was being so carelessly and negligently operated so as to cause it to rear-end the vehicle being operated by Plaintiff, SCOTT LANCASTER;

5. As a result, Plaintiff, SCOTT LANCASTER, suffered bodily injury and resulting pain and suffering, disability, disfigurement, mental anguish, loss of capacity for the enjoyment of life, expense of hospitalization, medical and nursing care and treatment, loss of earnings and loss of ability to earn money. The losses are either permanent or continuing and Plaintiff, SCOTT LANCASTER, will suffer the losses in the future. Plaintiff, SCOTT LANCASTER'S, automobile was damaged and he lost the use of it during the period required for its repair or replacement;
6. Further, at the time of the accident complained of, the Plaintiff and the vehicle Plaintiff, SCOTT LANCASTER, was driving were insured under a certain policy of insurance with Defendant, STATE FARM MUTUAL, more particularly described as Policy No. 773379111E, which policy was in full force and effect on October 5, 2016. A copy of which is in the possession of the Defendant;
7. Pursuant to the terms and conditions of said policy, Defendant, STATE FARM MUTUAL, agreed to provide, among other benefits, underinsured motorist coverage for Plaintiff, SCOTT LANCASTER; and
8. Plaintiff, SCOTT LANCASTER, has performed all conditions precedent in bringing this action.

WHEREFORE, Plaintiff, SCOTT LANCASTER, demands judgment for damages against Defendant, STATE FARM MUTUAL, in excess of Fifteen Thousand Dollars (\$15,000.00), plus interest and costs, and request a trial by jury of all issues so triable.

COUNT II
Umbrella Benefits

9. This is an action for damages which exceed Fifteen Thousand Dollars (\$15,000.00);
10. The Plaintiff, SCOTT LANCASTER, at all times hereinafter was a resident of Forcyth County, Georgia and most recently a resident of Manatee County, Florida;
11. STATE FARM FIRE is a foreign corporation authorized to do business and does business in Duval County, Florida;
12. On or about October 5, 2016 Plaintiff, SCOTT LANCASTER, was the operator of a motor vehicle at the intersection of San Jose Boulevard and S.R. 13 in Duval County, Florida. At the time and place, an underinsured vehicle operated by Jorge Trejo Ovando Bersain was being so carelessly and negligently operated so as to cause it to rear-end the vehicle being operated by Plaintiff, SCOTT LANCASTER;
13. As a result, Plaintiff, SCOTT LANCASTER, suffered bodily injury and resulting pain and suffering, disability, disfigurement, mental anguish, loss of capacity for the enjoyment of life, expense of hospitalization, medical and nursing care and treatment, loss of earnings and loss of ability to earn money. The losses are either permanent or continuing and Plaintiff, SCOTT LANCASTER, will suffer the losses in the future. Plaintiff, SCOTT LANCASTER'S, automobile was damaged and he lost the use of it during the period required for its repair or replacement;
14. Further, at the time of the accident complained of, the Plaintiff and the vehicle Plaintiff, SCOTT LANCASTER, was driving were insured under a certain policy of insurance with Defendant, STATE FARM FIRE, more particularly described as Policy No. 11-CT-P020-8,

- which policy was in full force and effect on October 5, 2016. A copy of which is in the possession of the Defendant;
15. Pursuant to the terms and conditions of said policy, Defendant, STATE FARM FIRE, agreed to provide, among other benefits, umbrella coverage for Plaintiff, SCOTT LANCASTER; and
16. Plaintiff, SCOTT LANCASTER, has performed all conditions precedent in bringing this action.

WHEREFORE, Plaintiff, SCOTT LANCASTER, demands judgment for damages against Defendant, STATE FARM FIRE, in excess of Fifteen Thousand Dollars (\$15,000.00), plus interest and costs, and request a trial by jury of all issues so triable.

/s/ John Golding
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